

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No:

Date Filed:

-----X
VERE LOTMORE,

Plaintiff,

Plaintiff designates
KINGS COUNTY

-against-

The basis of the venue is:
Place where cause of action arose

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER
HENRIQUEZ (Shield # 8780) and POLICE OFFICER
SHEPHERD (Shield # 12829),

The plaintiff resides at:
Kings County, New York

Defendants.

-----X
To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
October 30, 2024

Yours, etc.

LAW OFFICES OF WALE MOSAKU, P.C.

/s/ Wale Mosaku

BY: WALE MOSAKU
Attorney for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No:

VERE LOTMORE,

Plaintiff,

-against-

COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER
HENRIQUEZ (Shield # 8780) and POLICE OFFICER
SHEPHERD (Shield # 12829),

Defendants.

-----X

VERE LOTMORE (hereinafter "plaintiff"), by his attorney(s) THE LAW OFFICES OF WALE MOSAKU, P.C., complaining of the defendants THE CITY OF NEW YORK (hereinafter "City"), POLICE OFFICER HENRIQUEZ (Shield # 8780) and POLICE OFFICER SHEPHERD (Shield # 12829) (hereinafter "defendant officers"), alleges as follows:

NATURE OF THE ACTION

1. This is an action at law that sounds in the intentional tort(s) of unlawful search and seizure, false arrest/imprisonment and assault/battery.
2. This is also an action at law to redress the deprivation of rights secured to the plaintiff under the laws and statutes of the City of New York, specifically §8-802 of the New York City Administrative Code.

THE PARTIES

3. The plaintiff is an African American male of full age, and a resident of the Borough of Kings, City and State of New York.
4. At all relevant times, the defendant City of New York was/is a municipal corporation of the State of New York, and was/is the employer of the defendant police officers, through its Police Department, namely the New York City Police Department ("NYPD"), and the actions of the defendant police officers complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.
5. At the time of the incident complained of herein, each of the above-referenced defendant police officers was in the course of his duties. As such,

the City is responsible for the above-referenced defendant police officers' actions, based upon the theory of *respondeat superior*.

SATISFACTION OF THE PROCEDURAL PREREQUISITES FOR SUIT

6. All conditions precedent to filing of this action have been complied with; on September 3, 2024, within ninety days after the claims alleged in this complaint arose, a written notice of claim, sworn to by the plaintiff and/or his representative, was served upon the defendant City of New York by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party may be delivered in an action in the applicable Courts. Plaintiff's claim was assigned Claim No. 2024PI029079.
7. On October 25, 2024, the plaintiff served an "Amended Notice of Claim" upon the defendant City of New York.
8. At least thirty days have elapsed since the service of the above-mentioned notice of claim, and adjustment or payment of the claim has been neglected or refused.
9. This action, pursuant to New York State and City Law, has been commenced within one year and ninety days after the happening of the event upon which the claim is based.

FACTUAL ALLEGATIONS

10. On August 5, 2024, at approximately 3:10 p.m., in front of the premises described as 1152 Elton Street, Brooklyn, New York (subject location), the plaintiff was falsely arrested and unlawfully searched without probable cause by the defendant officers.
11. Prior to his arrest, the plaintiff was walking back home after having gone to a restaurant named Fisherman Cove (located on Rockaway Parkway) to purchase some food. At the time of the incident, the plaintiff had the food he had purchased with him.
12. As the plaintiff was walking by the subject location, the two defendant officers, who at the time were in a marked NYPD vehicle, drove up next to him, and exited their vehicle.

13. Upon exiting their vehicle, the two defendant officers approached the plaintiff, grabbed him, and informed him that he was under arrest.
14. The plaintiff was immediately placed in handcuffs, which were tightened to the extent that they caused the plaintiff injury to his wrists.
15. The defendant officers did not tell the plaintiff why he had been placed under arrest, but held the plaintiff at the subject location in full view of his neighbors and passers-by.
16. After approximately ten (10) minutes, the plaintiff asked the defendant officers to place him in their vehicle, instead of displaying him to the public in such a humiliating manner.
17. The defendant officers heeded to the plaintiff's request, and placed him in their vehicle. Thereafter, having been seated in the defendant officers vehicle for another 5-10 minutes, the plaintiff observed a Hispanic female (with eye-glasses) walk up to the defendant officers vehicle, following which the defendant officers opened the back door of said vehicle so the Hispanic female could closely observe the plaintiff.
18. The Hispanic female immediately informed the defendant officers "*that's not him*", and said so twice. At the time of the incident, the plaintiff was wearing a plain white t-shirt, grey shorts, black sneakers and a black baseball cap that was turned around back to front. The plaintiff also had ear pods in his ear.
19. At that juncture, the defendant officers removed the plaintiff from their vehicle and also removed from his wrists the handcuffs he had been placed in.
20. Following his release (which occurred approximately thirty (30) minutes after he was arrested), the defendant officers returned to the plaintiff all the personal items they had removed from him at the time of his arrest, except for his ear pods, which were not returned.
21. Following his arrest, the plaintiff was transported to the 79th Police Precinct, where he was placed inside a cell.
22. At the time of the above-referenced incident, the defendant officers were employed by The City of New York, and specifically, were in the course of

their duties when they committed the above-referenced wrongful and intentional acts against the plaintiff. As such, the City of New York is responsible for said defendant officers actions, based upon the theory of *respondeat superior*.

CAUSE(s) OF ACTION AGAINST THE DEFENDANTS: UNLAWFUL SEARCH, FALSE ARREST/FALSE IMPRISONMENT, ASSAULT, BATTERY AND FAILURE TO INTERVENE UNDER NEW YORK STATE/CITY LAW

23. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 22 of this complaint as though fully set forth herein.
24. The above-described respective arrest, detention and imprisonment of the plaintiff by the defendant officers were without just or probable cause, and without any warrant or legal process directing or authorizing the plaintiff's arrest or subsequent detention.
25. As a result of the plaintiff's above-described false arrest and detention by the defendant officers, the plaintiff has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in his character and reputation.
26. The defendants are further liable to the plaintiff for the above-referenced illegal and unlawful searches and seizure, false arrest and imprisonment, assault/battery, and failure to intervene, pursuant to §8-802 and §8-803 of the New York City Administrative Code.
27. The defendant officers were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for their unlawful acts towards the plaintiff as described above.
28. Consequently, the plaintiff has been damaged and hereby demands compensatory damages in an amount to be proven at trial against each defendant, including but not limited to the defendant City of New York.

WHEREFORE, the plaintiff prays for judgment against each defendant, jointly and severally, as follows: for compensatory damages in an amount to be proven at trial; for costs and expenses of suit herein, including his reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York
October 30, 2024

LAW OFFICES OF WALE MOSAKU, P.C.

By: /s/ Wale Mosaku

Wale Mosaku
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, N.Y. 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index #:
VERE LOTMORE,

Plaintiff,

-against-

ATTORNEY CERTIFICATION
PURSUANT TO 22 NYCRR Part
130-1.1(c)

THE CITY OF NEW YORK, POLICE OFFICERS
JOHN DOE 1-2,

Defendants.

-----X

The undersigned attorney does hereby certify:

That I am the attorney for the plaintiff and duly admitted to practice law before the Courts of the State of New York. I do hereby provide this signed certification pursuant to 22 NYCRR Part 130-1.1 (c), that the papers that I have served, filed or submitted to the Court in this action are not frivolous.

Dated: Brooklyn, New York
October 30, 2024

Yours, etc.

LAW OFFICES OF WALE MOSAKU, P.C.

/s/ Wale Mosaku

BY: WALE MOSAKU
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

Index No.

VERE LOTMORE,

Plaintiff(s),

-against-

**THE CITY OF NEW YORK, POLICE OFFICERS
JOHN DOE 1-2,**

Defendant(s).

SUMMONS AND COMPLAINT

**LAW OFFICES OF WALE MOSAKU, P.C.
Attorney(s) for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994**

To:

Service of a copy of the within
is hereby admitted.

Dated:..... 202_

Attorney(s) for Defendant(s)
